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Calif. Democrats want to strike term illegal 'alien' from state laws

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California Democrats introduced a bill last week that seeks to eliminate the term "alien" from state laws, an immigration classification used to describe undocumented immigrants and foreign-born individuals.

"It's an offensive term," said Assemblywoman Luz Rivas, D-Arleta, an author of the Assembly Bill 1096. "Words matter and they are very powerful."

If passed, the bill would remove the uses of the term in California codes, including the state's education, military and penal codes, among others.

The extensive bill suggests replacing "alien" with more modern terms like "resident," "person," "undocumented immigrant" or "a person who is not a citizen or national of the United States."

That means revising various pages of California law, from adjusting language in lottery entry rules to university admission guidelines.

The new California bill comes nearly a month after President Joe Biden released his own immigration plan, the U.S. Citizenship Act of 2021. Under Biden's bill, the term "noncitizen" seeks to replace "alien" in federal immigration laws to recognize the U.S. as a "nation of immigrants," according to the bill's summary.

Referring to undocumented immigrants as "aliens," according to Rivas, erases their contributions to the state's economy and workforce.

"It's a term that was used to remind us that we don't belong in this country," Rivas said.

A 2019 analysis by the California Budget & Policy Center found that undocumented immigrants in California contribute an estimated $3.2 billion each year in state and local taxes.

About 11 million foreign-born immigrants live in California and an estimated 2 million are undocumented, according to the Public Policy Institute of California.

The bill builds upon previous legislation introduced by former state Sen. Tony Mendoza, D-Artesia. Former Gov. Jerry Brown signed Mendoza's bill into law in 2015 to ban the use of "alien" from the state's labor code.

The bill is also co-authored by Assembly members Jesse Gabriel, D-Encino, Evan Low, D-Campbell, Robert Rivas, D-Hollister, and state Sen. Maria Elena Durazo, D-Los Angeles.

"Using the antiquated, xenophobic term 'alien' to refer to an immigrant has no place in California," Durazo, who chairs the California Latino Legislative Caucus, said in a statement. "It's time we get rid of this dehumanizing, alienating language in California Code, and replace it with a term that gives the dignity to our immigrant population that they deserve."

Kevin R. Johnson, dean of the UC Davis School of Law and Chicano/a studies professor at the school, believes Democratic politicians are introducing legislation to ban "alien" in reaction to Trump's previous usage of the term to dehumanize undocumented immigrants.

"The word 'alien' helps to rationalize the harsh treatment of groups or individuals who are viewed as less than human," Johnson said. "The term can demonize."

He said the term can carry with it racial connotations associated with Mexicans and Central Americans.

After a 2019 mass shooting in El Paso, Texas, by a gunman believed to have targeted Latinos, then-President Donald Trump was criticized for using terms such as "alien" and "invasion" when describing immigration to the U.S.

The term's usage in the California Legislature dates back to 1937, when it was used to describe people not born in the U.S. and noncitizens, according to a press release on the bill.Other government-related terms that contained racial epitaphs include "Operation Wetback," a mass deportation initiative under the Eisenhower administration during the mid-1950s.

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